

IN THE HIGH COURT OF JUSTICE

KING'S BENCH DIVISION

ADMINISTRATIVE COURT

Claim No: AC-2025-LON-004293

BETWEEN:

NADIA ZAHMOUL

Claimant

-and-

THE SECRETARY OF STATE FOR JUSTICE

HM COURTS & TRIBUNALS SERVICE

Defendants

**CONSOLIDATED APPLICATION FOR PERMISSION TO RELY ON FURTHER PARTICULARS
OF GROUND 1**

A. Application

1. The Claimant applies for permission to rely on Further Particulars of Ground 1 of her Amended Grounds of Claim dated 2 January 2026, currently before the Court at the permission stage.
2. This application is made:
 - prior to any determination of permission, and
 - in the absence of any direction limiting further material.

3. The Claimant is a litigant in person and files this application in good faith to assist the Court.

B. Scope of the Application

4. The Further Particulars:
 - do not introduce any new cause of action or new ground of challenge;
 - do not expand the scope of the Judicial Review;
 - are confined to clarifying, evidencing, and particularising matters already pleaded within Ground 1 of the Amended Grounds.
5. Ground 1 already challenges the administrative revocation and non-operation of court-ordered protective measures, including:
 - participation measures under Part 3A; and
 - Maintenance Pending Suit (“MPS”).
6. The Further Particulars relate only to the MPS aspect of Ground 1.

C. Purpose of the Further Particulars

7. The purpose of the Further Particulars is to assist the Court at the permission stage by:
 - a. clarifying the accurate chronology of the Claimant’s requests for enforcement of a live MPS order, beginning on 7 March 2024;

b. addressing inaccurate assumptions reflected in the court record that the Claimant's MPS claim arose only after judgment was handed down on 18 April 2024;

c. explaining the causal impact of the non-operation of MPS on the Claimant's ability to participate in proceedings, including post-judgment order-drafting; and

d. placing before the Court subsequently confirmed administrative evidence from HMCTS that it holds no record of any MPS order in the Claimant's case.

8. That HMCTS confirmation materially particularises allegations already pleaded at paragraphs 5–8 and Table 1 of the Amended Grounds, namely:

- the absence of any lawful administrative process for the operation, enforcement, variation, or cessation of MPS;
- the absence of a contemporaneous audit trail or recorded decision; and
- the resulting interference with effective participation and access to the court.

D. Further Particulars of Ground 1: Maintenance Pending Suit

D1. Correct chronology

9. The Claimant began requesting enforcement of a live MPS order on **7 March 2024**, following the conclusion of the trial on **28 February 2024**.

10. Those requests were made:

- in open correspondence;
- repeatedly during March and April 2024; and
- expressly linked to the Claimant's inability to participate following:
 - cessation of maintenance payments;
 - withdrawal of participation measures; and
 - loss of legal representation.

11. The MPS was not contingent on the handing down of judgment on **18 April 2024** and remained legally operative pending decree absolute, **which has not occurred to date.**

12. The treatment of the Claimant's MPS claim as arising only post-judgment is therefore factually incorrect.

D2. Administrative inaction

13. Despite repeated requests:

- the Claimant's enforcement application was not sealed;
- no hearing was listed;
- no reasons were provided; and
- no vulnerability-aware process was applied.

14. No lawful administrative mechanism was operated to:

- enforce the MPS;
- vary or discharge it; or

- determine accrued arrears during March–May 2024.

D3. Retrospective remission

15. On **14 May 2024**, a provision remitting MPS arrears was introduced into the draft final order and later sealed on **24 May 2024**.

16. That provision was introduced:

- without notice to the Claimant;
- without a hearing;
- without determination of her outstanding enforcement requests; and
- at a time when she was demonstrably unable to participate.

17. The retrospective remission did not cure the prior period of unlawful non-enforcement and instead neutralised its consequences.

D4. HMCTS record failure

18. In April 2025, HMCTS confirmed in writing that:

- the orders it holds on file for the Claimant's case do not include any MPS order; and
- it may not hold a full record of orders made in the proceedings.

19. This confirmation demonstrates a systemic administrative failure, in that:

- a live court-ordered protective mechanism was not properly recorded, retained, or retrievable; and
- enforcement and remission were addressed without a traceable administrative audit trail.

D5. Impact on participation, including order-drafting

20. Following the withdrawal of formal participation measures, the MPS functioned in practice as a participation-preserving mechanism.

21. The administrative failure to operate, record, or enforce the MPS:

- deprived the Claimant of subsistence and legal representation;
- rendered her unable to engage in enforcement processes; and
- directly impaired her effective access to the court.

22. Inability to engage in order-drafting:

Following the conclusion of the trial on **28 February 2024**, the Claimant was unable to engage meaningfully in the post-judgment order-drafting process. This was a direct consequence of the withdrawal of participation measures, the non-enforcement of MPS, and the resulting loss of legal representation and functional capacity. During the period in which multiple drafts of the final order were prepared and revised, the Claimant did not receive draft orders, was not consulted on proposed changes, and was not in a position to review or respond to unilateral amendments. The administrative failure to preserve participation therefore

extended beyond hearings and enforcement and materially affected the integrity and fairness of the order-drafting process itself.

23. These matters materially particularise Ground 1 and support the pleaded allegations of:

- procedural unfairness;
- breach of duties under the Equality Act 2010; and
- interference with effective participation contrary to Article 6 ECHR.

E. Relief Sought (Limited)

24. The Claimant seeks permission to rely on these **Further Particulars of Ground 1** in support of the Amended Grounds of Claim dated **2 January 2026**.

Dated: 9 January 2026

Nadia Zahmoul

Signed:

Nadia Zahmoul

Claimant (Litigant in Person)